

STATE OF NEW YORK
STATE EDUCATION DEPARTMENT

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In the Matter of the Appeal of

AARTHI MUTHUKRISHNAN, on behalf of herself
and her children (I.N. and A.M.), RACHEL
THORNTON, on behalf of herself and her children
(C.F. and E.F.), ARIELLA GASTEL, and all other
students, parents, and residents similarly situated,

Petitioners,

from action of the

HASTINGS-ON-HUDSON UNION FREE SCHOOL
DISTRICT and the BOARD OF EDUCATION OF
THE HASTINGS-ON-HUDSON UNION FREE
SCHOOL DISTRICT,

regarding the Board's vote on April 8, 2026, to award
a District construction contract to Laura Li Industries,
LLC,

Respondents.

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**AFFIRMATION IN
OPPOSITION TO
REQUEST FOR STAY**

Appeal No. 22746

STEPHANIE L. BURNS, an attorney duly admitted to the practice of law before the courts
of the State of New York, hereby declares under penalty of perjury as follows:

1. I am principal member of the law firm of KEANE & BEANE, P.C., attorneys for
HASTINGS-ON-HUDSON UNION FREE SCHOOL DISTRICT (the "District") and the
BOARD OF EDUCATION OF THE HASTINGS-ON-HUDSON UNION FREE SCHOOL
DISTRICT (the "Board"), who are the Respondents in the above-captioned Appeal, and represent
them in the above-captioned Appeal.

2. I make and submit this Affirmation in Opposition to the Request for an Order
directing a stay of the April 8, 2026 construction contract award made by the Board to Lauri Li
Industries, LLC ("Laura Li") sought by Petitioner AARTHI MUTHUKRISHNAN, on behalf of
herself and her children (I.N. and A.M.), Petitioner RACHEL THORNTON, on behalf of herself

and her children (C.F. and E.F.), Petitioner ARIELLA GASTEL, and all other students, parents, and residents similarly situated (collectively, the “Petitioners”).

3. Petitioners’ request for interim relief must be denied on both procedural and substantive grounds. The Petitioners lack standing to bring the instant appeal and have not named Laura Li as a respondent. The Petitioners have also failed to demonstrate that the Respondents’ determination that Laura Li substantially complied with the bid specifications is arbitrary and capricious.

4. Through the instant Appeal, Petitioners seek to stay and ultimately annul the construction contract awarded to Laura Li, because they contend that the bid of Laura Li fails to conform to the specifications that were issued by the Respondents and, therefore, they further contend as a result the contract will be an illegal expenditure of District funds. An individual cannot maintain an appeal pursuant to New York Education Law Section 310 unless aggrieved in the sense that he or she has suffered personal damage or injury to his or her civil, personal or property rights. *See Appeal of Roth*, 50 Ed. Dep’t Rep. ___, Decision No. 16,171 (2010); *Appeal of Jaidan Industries, Inc.*, 55 Ed. Dep’t Rep. ___, Decision No. 16,856 (2015); *Appeal of White*, 61 Ed. Dep’t Rep. ___, Decision No. 18,053 (2021). Petitioners allege they are residents and taxpayers of the District, but have not alleged any personal damage or injury caused to them by the award of the contract to Laura Li. In similar circumstances, where the award of a contract was challenged as violative of New York’s competitive bidding statutes and an illegal expenditure of funds as a result, the Commissioner of Education found status as a resident and taxpayer was not sufficient to confer standing to the Petitioner. *See Appeal of Roth*, 50 Ed. Dep’t Rep. ___, Decision No. 16,171 (2010); *Appeal of White*, 61 Ed. Dep’t Rep. ___, Decision No. 18,053 (2021). Similarly, as the Petitioners do not allege that the District lacked the authority to seek bids for the construction

contract awarded, the Court of Appeals decision, *Matter of Transactive Corporation v. New York State Department of Social Services*, 92 N.Y.2d 579, 684 N.Y.S.2d 156, supports finding Petitioners lack standing to challenge the contract awarded to Laura Li.

5. In this Appeal, Petitioners challenge the award of a construction contract to Laura Li. While Petitioners list Lauri Li in their Petition as a necessary party, Section 275.8(c) of the Regulations of the Commissioner of Education, requires the successful bidder to be joined as a respondent and to be served with a copy of the Petition. Laura Li has not been listed in the caption of the Petition or Notice of Petition as a Respondent or designated as such in the Petition.

6. Substantively, the Petitioners have failed to rebut the presumption of regularity which attaches to a school district award of a competitively bid contract. It is incumbent upon the Petitioners to overcome such presumption by establishing the award made by the Board was without reasonable foundation. *See Appeal of Whitson's School Nutrition Corporation*, 50 Ed. Dep't Rep. ___, Decision No. 15,977 (2009).

7. The Commissioner of Education has held that "[b]ids must conform substantially to the advertised specifications, and, [w]here there are minor variations which do not afford the bidder an unfair advantage, rejection may not necessarily be required." *Appeal of Educational Food Management Services, Inc.*, 61 Ed. Dep't Rep. ___, Decision No. 12,721 (1992).

8. Courts have held that "it is a municipality's right to determine whether a bid meets its specifications, and that determination is entitled to deference if it is supported by any rational basis [citations omitted]. A court may not substitute its judgment for that of the board or body it reviews unless the decision under review is irrational, illegal, arbitrary and capricious or an abuse of discretion [citations omitted]. It is the petitioner's burden to demonstrate that a contract has been wrongly awarded [citations omitted]." *Cipco Boarding Co., Inc., v. Town of Hempstead*, 164

A.D.3d 1235, 1236, 83 N.Y.S.3d 213, 214-15 (N.Y. App. Div., 2d Dep't 2018); *Brega Transportation Corp. v. Brennan*, 105 A.D.3d 985, 987, 964 N.Y.S.2d 203, 205-6 (N.Y. App. Div., 2d Dep't 2013) (when bid specifications are "not facially anticompetitive," Courts apply ordinary rational basis review).

9. A Court has also held that "[i]n reviewing determinations made by a public agency, the discretionary decision of the agency 'ought not to be disturbed by the courts unless irrational, dishonest or otherwise unlawful' [citations omitted] '[I]t is beyond the scope of judicial review to consider the facts *de novo* nor may the court substitute its judgment for that of the agency' [citations omitted]. 'While a technical noncompliance with bid specifications may be waived in the agency's discretion.' [citations omitted]" *K&M Turf Maintenance v. Gallo*, 166 A.D.2d 445, 560 N.Y.S.2d 673 (N.Y. App. Div., 2d Dep't 1990). "Noncompliance is considered material only when it would impair the interests of the contracting public authority or place some of the bidders at a competitive disadvantage." *Hungerford & Terry, Inc. v. Suffolk County Water Auth.*, 12 A.D.3d 675, 785 N.Y.S.2d 506 (N.Y. App. Div., 2d Dep't 2004).

10. The Petitioners contend that the testing results discussed in the Gradient Memorandum dated January 7, 2026, which is included in Exhibit P to the Verified Petition of Petitioners ("Gradient Memorandum"), establish the FieldTurf turf product to be installed by Laura Li does not comply with the bid specifications issued by the District. However, the Gradient Memorandum concludes that the test results of the FieldTurf samples are consistent with no PFAS being used in the manufacture of the turf. *See* Gradient Memorandum, p. 11 (Exhibit P of the Verified Petition).

11. As established in the accompanying affidavit of Alexander Dal Piaz, duly sworn to on May 14, 2026 (the "Dal Piaz Affidavit"), the District and the Board, like the New York State

Department of Environmental Conservation (“DEC”) find not intentionally adding PFAS in the formulation or manufacturing process of artificial turf complies with its bid specification that the artificial turf to be installed does not contain any PFAS. As also established in the Dal Piaz Affidavit, the manufacturer (FieldTurf) of the turf type to be installed pursuant to the contract awarded to Laura Li does not intentionally add PFAS in the formulation or manufacturing process of its artificial turf. *See* Dal Piaz Affidavit, ¶¶ 27, 30, 31, Exhibits N, O, P; Exhibit Q (FieldTurf Statement dated Marcy 25, 2026) to the Verified Petition of Petitioners, dated May 4, 2026. So, the contract awarded to Laura Li is compliant with the bid specifications.

12. Moreover, the Dal Piaz Affidavit refutes the contention that the test results described in the Gradient Memorandum establish that the FieldTurf turf samples actually contain any PFAS. *See* Dal Piaz Affidavit, ¶ 28.

13. Applying the above-referenced authorities to the facts presented in the accompanying Affidavit of Alexander Dal Piaz, it is clear that the determination of the Board that Laura Li complied with the specifications and was the lowest responsive and responsible bidder for the contract for the Burke Estate Project was and is supported by a rational basis and, therefore, should not be disturbed.

14. Even if the Commissioner of Education determines the FieldTurf product containing PFAS that was not intentionally added or used in the manufacturer or production of the turf does not comply with the District’s bid specifications and that Petitioners’ have provided sufficient evidence that the FieldTurf turf contains PFAS, the above-referenced authorities establish the Board had the authority to waive this noncompliance with the bid specifications given that only trace levels of any PFAS were detected in any of the analyzed samples of FieldTurf’s turf blades and backing material, these trace levels are consistent with the low levels of PFAS

compounds found in soil and rainwater across North America, PFAS content is but one factor considered with respect to the turf field installation and the installation of the artificial turf fields is only a portion of the Burke Estate Project. Accordingly, there is no basis on which to invalidate the contract award to Laura Li for the Burke Estate Project

15. Petitioners have clearly failed to meet her burden of demonstrating a clear legal right to the relief requested. As Petitioners are unable to demonstrate a likelihood of success on the merits, their request for interim relief must be denied.

Dated: White Plains, New York
May 14, 2026

KEANE & BEANE, P.C.

By: 
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